

DATA PROCESSING ADDENDUM (ACME CLOUD SYSTEMS, INC. — NORTHWIND LOGISTICS LLC)

Agreement ACME-NW-MSA-2026 Effective 2026-01-01 Issued under SYN-001

This Data Processing Addendum (“DPA”) forms part of the Master Services Agreement dated January 1, 2026 between Acme Cloud Systems, Inc. (“Processor”) and Northwind Logistics LLC (“Controller”).

2. Roles and Instructions

2.1 Controller determines the purposes and means of processing Personal Data. Processor shall process Personal Data only on documented instructions from Controller, including as set out in the Agreement and this DPA.

2.2 Processor shall inform Controller if, in its opinion, an instruction infringes applicable data protection law.

4. Security

4.1 Processor shall implement and maintain appropriate technical and organizational measures to protect Personal Data against unauthorized or unlawful processing and against accidental loss, destruction, or damage, having regard to the state of the art, the costs of implementation, and the nature, scope, context, and purposes of processing.

4.2 Processor shall ensure that personnel with access to Personal Data are subject to confidentiality obligations and receive security awareness training annually.

5. Personal Data Breach

5.1 Processor shall notify Controller without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a Personal Data Breach affecting Controller’s Personal Data.

5.2 The notification shall describe the nature of the breach, the categories and approximate number of data subjects and records affected to the extent known, the likely consequences, and the measures taken or proposed.

5.3 Processor shall provide reasonable assistance to Controller in meeting Controller's own notification obligations, including any obligation to notify a supervisory authority within seventy-two (72) hours.

6. Subprocessors

6.1 Controller authorizes Processor to engage the subprocessors listed at the URL identified in Annex 2.

6.2 Processor shall give Controller at least thirty (30) days' prior written notice of the addition or replacement of a subprocessor. Controller may object on reasonable data protection grounds within fifteen (15) days of the notice, in which case the parties shall discuss the objection in good faith.

8. Audits

8.1 Processor shall make available its most recent SOC 2 Type II report on request, no more than once in any twelve (12) month period.

8.2 Controller may conduct an on-site audit no more than once in any twenty-four (24) month period, on at least thirty (30) days' prior written notice, during business hours and subject to Processor's security requirements.

9. Deletion and Return

9.1 On termination of the Agreement, Processor shall delete Personal Data within ninety (90) days after the end of the thirty (30) day export window described in Section 5.2 of the Agreement, except to the extent retention is required by law.

SIGNATURE · NAME · TITLE · DATE

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Corpus note: Narrative security and processing obligations; the notice and objection deadlines are rule-shaped.